

Memo.No.44/SC.D/88-1, Genl.Admn. (SC.D) Dept., dt.01.12.1988 regarding Anti-Corruption Bureau reports - dealing of.

Subject Heading : ACB - ACB Report, a classified document

Ref : 1. U.O.Note No. 664/SC.D/87-1, G.A.(SC.D) Dept., dt. 29-6-87.

2. U.O.Note No. 1798/SC.E/87-1, G.A.(SC.E) Dept., dt. 20-10-87.

In the reference first cited, all the departments of the Secretariat have been informed that Anti-Corruption Bureau references / reports are classified documents and requested to guard against the mis-placement or leakage of Anti-Corruption Bureau reports and also against unauthorised persons coming into possession of the reports and leakage of Anti-Corruption Bureau reports to the accused officers. It was also emphasised that Anti-Corruption Bureau reports should be handled carefully.

2. In the reference second cited all the departments of Secretariat were requested not to make mention of the correspondence with the Anti-Corruption Bureau in their order appointing the Inquiry Officer and also not to mark a copy of the order to the Anti-Corruption Bureau but send a copy of the order to the Anti-Corruption Bureau separately, that similarly a separate communication should be sent to the Anti-Corruption Bureau regarding instructions for furnishing documentation to the Inquiry Officer. Further, the departments have to take action as per Memo.No.490/SC.E/87-1, GA (SC.E) Department, dt.13.03.87, and appoint Inquiry Officer only after the written statement of defence is received from the charged officer and considered by them.

3. However, instances have come to notice wherein a petitioner got the Secret / Confidential reports of the Anti-Corruption Bureau and confidential communication of Government from the Inquiry Officer and produced the same in the A.P.A.T, Hyderabad, through his Counsel. The A.P.A.T viewed this matter as most unfortunate and ordered that the matter be investigated. The above is due to lack of knowledge on the part of the Inquiry Officers.

4. As per Rule 14 of the APCS (Conduct) Rules, 1964, no Government employee shall, except in accordance with any general or special order of Government communicate directly or indirectly any official document or any of its contents, or any official information, to any Government employee not authorised to receive the same, or to any non-official person or the press.

5. The supply of such classified documents or disclosure of such information to the accused officer or to any unauthorised person or agency amounts to official misconduct and the officer involved is liable for major penalty. Unauthorised supply of copies of such documents, if proved beyond all reasonable doubt, amounts to criminal breach of trust punishable under Section 409 I.P.C.

6. In the circumstances, all the Heads of Departments and Departments of Secretariat are requested to guard against the mis-placement or leakage of the Anti-Corruption Bureau reports and confidential communications of Government and unauthorized persons coming into possession of classified documents and also to ensure that such reports / communications are handled and

accounted for properly. They are also requested to follow para-2 above while initiating disciplinary action.